provisions of this Convention apply.

3. The use of the term peoples in this Convention shall not be construed as having any implications as regards the rights which may attach to the term under international law [emphases added].

From these provisions of the 1957 and 1989 Conventions, it is evident that both use terms, such as ‘tribe’ and ‘indigenous peoples’ or ‘indigenous populations’, interchangeably to distinguish them from the ‘national communities’ of former colonies. Such an ethnocentric distinction makes sense in the context of those colonies that experienced European settler colonialism and continue to have significant settler populations. But given the breadth of the definition, it appears that the distinction is equally applied to those former colonies, such as Bharat, where the European settler population is not considerable. As a consequence of this, the distinction between ‘dominant national communities’ and ‘indigenous/tribal peoples’ when applied to countries like Bharat introduces internal coloniality *within* the native population by treating ‘minority tribal communities’ as being racially and culturally distinct from ‘majority national communities’, which has no basis in the native worldview. In other words, a permanent fault line or division is created through an international instrument that manufactures an artificial power hierarchy between ‘national communities’ and indigenous populations or tribes while treating majority national communities as colonisers and less indigenous than the tribes. Putting such national communities in the same category as the European coloniser is as mischievous as it can get because it makes them the successors of the legacy of European colonialism and treats them as pre-European colonisers of indigenous lands. The origin of this categorisation can be traced to the creation of a ‘tribal’ identity by the European coloniser in colonised societies for the purpose of creating ethnic fissures that could simultaneously facilitate co-option of the influential cultural elites, and conversion of ‘indigenous tribal groups’ through evangelical activity. This factum of creation of ‘tribe’ as a colonial category for colonised peoples has been dealt with in the second section of the book in the context of Bharat. What this proves is that the framework of the ILO Conventions strikes a distinction between ‘national communities’ and ‘tribes’ *because* they are based on the colonial creation called ‘tribe’.